

Bihar Lift Irrigation Rules, 1978

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State of Bihar - Act

Bihar Lift Irrigation Rules, 1978

BIHAR

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Bihar Lift Irrigation Rules, 1978

Rule BIHAR-LIFT-IRRIGATION-RULES-1978 of 1978

Published on 6 March 1979

Commenced on 6 March 1979

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Bihar Lift Irrigation Rules, 1978

Published vide Notification No. G.S.R. 19 dated 6th March, 1979

G.S.R. 19 the 6th March, 1979. - The Governor of Bihar purposes to make in exercise of the powers conferred by Section 40 of the Bihar Lift Irrigation Act, 1956 (Bihar Act XVI of 1956), is pleased to make following Rules.

1.

These Rules may be called the Bihar Lift Irrigation Rules, 1978.

2.

Definitions.

(1)

In these Rules, unless there is anything repugnant in the subject or context. -

(a)

"Act" means the Bihar Lift Irrigation Act, 1956 (Bihar Act XVI of 1956);

(b)

"Corporation" means the Bihar State Water Development Corporation Limited or the Bihar State Hilly Area Lift Irrigation Corporation Limited;

(c)

"Chief Engineer" or "Additional Chief Engineer" means the Officer who controls the works of the Superintending Lift Irrigation Officer and his sub-ordinates;

(d)

"Form" means a Form given in Appendix to these Rules;

(f)

"Lift Irrigation Deputy Collector or Revenue Officer" means the Deputy Collector or Revenue Officer incharge of the Revenue Collection of the area in which the Lift Irrigation work falls;

(g)

"Lift Irrigation Assistant Revenue Officer" means the Lift Irrigation Assistant Revenue Officer in charge of one or more Revenue Circles under the Lift Irrigation Deputy Collector or Revenue Officer;

(h)

"Lift Irrigation Ziladar" means the officer appointed to make assessment or collection of revenue in any Lift Irrigation Division;

(i)

"Section" means a Section of the Act;

(j)

"Rule" means a Rule of these Rules;

(k)

"Sectional Lift Irrigation Officer" means the Engineer in-charge of any section in which the Lift Irrigation work falls;

(l)

"Sub-divisional Lift Irrigation Officer" means the Engineer in-charge of any sub-division in which the Lift Irrigation work falls;

(m)

"Superintending Lift Irrigation Officer" means the Superintending Engineer in-charge of a Circle in which the Lift Irrigation work falls; and

(n)

"Assured irrigable command area" means the area notified as such.

(2)

All words and expressions used in these Rules and not defined but defined in the Act shall respectively have the same meanings as are assigned to them in the Act.

3.

(1)

Sub-divisional Lift Irrigation Officer or his subordinate shall supply water to the assured irrigable command area during such period of the year as may be notified.

(2)

Every application for inclusion in exclusion for assured irrigable command area shall be filed before the Divisional Lift Irrigation Officer directly or through the Sub-divisional Lift Irrigation Officer.

4.

(1)

Every application for supply of water under sub-section (3) of Section 22-A shall be submitted to the Sectional or Sub-divisional Lift Irrigation Officer.

(2)

Any application for supply of water of any of the following classes shall be in the form mentioned against such class :-

Class of application.

Form no.

(a)

Kharifseason lease

-
-

1

(b)

Rabiseason lease

-
-

2

(c)

Hot weather season lease

-
-

3

(d)

Lease for supply of water by volume

-
-

4

(e)

Single watering

-
-

5

5.

The beneficiary shall put his signature or thumb impression on the Jamabandi Register in token of receipt of water immediately after each watering.

6.

The supply of water shall be first to the assured irrigable command area, then to season lease and single watering lease and thereafter for purposes other than irrigation.

7.

The State Government by themselves or at the request of Corporation may order stoppage of supply of water to the lands in villages in which less than sixty per centum of the water-rates have been realised, until the arrears or such part thereof as is considered satisfactory by the Government has been paid.

8.

(1)

The Sub-divisional Lift Irrigation Officer may in consultation with the applicants for any lease and with the Ziladar appoint one or more persons to be Lambardars to represent all the applicants jointly or may appoint a person to be Lambardar to represent any group of such applicants.

(2)

If the Sub-divisional Lift Irrigation Officer is unable to agree with the applicants as to the persons to be appointed as Lambardars the appointment shall be made by the Divisional Lift Irrigation Officer.

(3)

No person shall be appointed Lambardar unless he has a beneficial interest in the land to be irrigated or some part thereof and sufficiently literate.

9.

The Divisional Lift Irrigation Officer may, for reasons to be recorded in writing, remove any Lambardar whom he considers unsuitable and may direct that another person shall be appointed as Lambardar by the Sub-divisional Lift Irrigation Officer in accordance with the provisions of this Rule.

10.

The Lambardar shall -

- (a)
Witness signature or thumb impression of beneficiaries, on Jamabandi Register for the supply of water.
 - (b)
Attend and give assistance in measuring land irrigated or proposed to be irrigated.
 - (c)
Give timely information to the Lift Irrigation Officer of the irrigation requirements of the leased block and report promptly when the irrigation of leased area is completed.
 - (d)
Supervise distribution of water supplied to the persons entitled thereto and report any misuse of such water.
 - (e)
Attend, if required to do so, when complaints are investigated by a Lift Irrigation Officer and give any information required in connection with the investigation of such complaint.
 - (f)
Receive from the Lift Irrigation Officer and distribute demand slips (parchas) to the persons named therein and submit yearly report regarding the distribution of such Parchas accompanied by acknowledgement of their receipts by the rate-payers.
 - (g)
Return to the Lift Irrigation Officer for distribution by official agency all Parchas not distributed within fourteen days of receipt by him.
 - (h)
Report 20 days before harvesting all cases in which crops have been injured by any deficiency or irregularity of supply of water.
 - (i)
Assist the Lift Irrigation Deputy Collector or Revenue Officer by pointing out the residences of persons assessed by identifying them and by generally helping in collection of water rates.
 - (j)
Give timely information about death, bankruptcy or absconding of any of the rate-payers.
 - (k)
Assist of optimum utilisation of potential of irrigation.
- 11.
- The authorised Lift Irrigation Officer shall pay to the Lambardar as remuneration for the performance of the duties mentioned in rule 10 a proportion of the total water-rate assessed on the occupiers represented by him and calculated and paid in the following manner :-
- (i)
at the rate of Rs. 2.00 per Rs. 100.00 assessment for all leases. Fraction of a rupee in the total of the assessment and of a naya paisa in the amount of remuneration shall be omitted.
 - (ii)
The remuneration payable to the Lambardars shall be deemed to be payable in the portion of one-third for water rate assessment work one-third for water rate collection work and one-third for optimum utilization of irrigation potential and shall be paid by the Sub-divisional Lift Irrigation Officer within a period of one year from the commencement of the season concerned.
 - (iii)
Such remuneration shall not be paid to the Lambardar unless he has satisfactorily performed the duties specified in Rule 10 and the Divisional Lift Irrigation Officer, or the Lift Irrigation Deputy Collector or Revenue Officer may, for reasons to be recorded in writing, with payment of any portion of the proportion of the remuneration due to Lambardar if he has not satisfactorily performed the duties for which such proportion is deemed to be payable under this Rule.
- 12.
- The Sub-divisional Lift Irrigation Officer may supply water by volume, for manufacturing bricks or for any other purpose if available, after meeting irrigation requirement, at notified rates.
- 13.
- (1)

The rates payable for supply of water shall be as notified from time to time by the State Government.

(2)

For unauthorised use of water, the persons concerned shall be liable to pay penal rate under Rule 16.

(3)

In default of payment of water-rate by the date specified in this behalf a surcharge at the rate of six and a quarter per centum per annum shall be leviable on such arrear of water rate from the date on which it fell due up to the date immediately preceding the date of the signing of the certificate by the Certificate Officer under Section 6 of the Bihar and Orissa Public Demands Recovery Act, 1914 (Bihar and Orissa Act IV of 1914).

14.

If only a portion of field is irrigated outside assured irrigable command area the water rates shall be chargeable on the whole field unless such portion shall have been clearly demarcated previous to the admission of water by a ridge not less than six inches high; and if a portion of a field has been irrigated by Lift Irrigation and the rest of other portion by other means the whole field shall be assessed to water rates unless clearly distinguishable boundary exists between the two portions.

15.

Water-rates outside assured irrigable command area shall be charged on area actually irrigated.

Unauthorised Use and Waste of Water.

16.

(1)

If Lift Irrigation water is used in any unauthorised manner the person chargeable under Section 25 or if it is suffered to run to waste the person chargeable under Section 26 shall be assessed by the Divisional Lift Irrigation Officer at a penal rate which shall be double the prescribed rate:

Provided that during the Kharif season such a rate shall be assessed only if water so used has been taken directly from any lift irrigation work or through a leased block during the course of its irrigation or if a person has committed an offence under clauses (1), (2) or (6) of Section 35.

(2)

If any tank or ahar has been supplied with water obtained in an unauthorised manner, the rate charged shall be double the specified rate in force.

17.

(1)

If the Sub-divisional Lift Irrigation Officer is satisfied that a person has used lift irrigation in an unauthorised manner or wasted it so as in either case to become liable to be charged at the penal rate as specified in Rule 16 such. Lift Irrigation Officer shall, as soon as possible, hold or cause to be held a local enquiry and shall obtain and record the evidence of the Lambardar and the villagers and other persons concerned. He shall, if possible, give previous notice in writing to the persons affected by the enquiry of the date on which the enquiry is likely to be held.

(2)

If after such enquiry the Sub-divisional Lift Irrigation Officer considers that penal rate should be assessed in accordance with Rule 16, he shall forward the whole record of the enquiry with his opinion thereon to the Divisional Lift Irrigation Officer for orders.

(3)

The Divisional Lift Irrigation Officer may, after recording in writing his reasons for so doing, order that the rate shall be assessed in accordance with Rule 16 and shall return the record to the Sub-divisional Lift Irrigation Officer for completion of the assessment.

(4)

Each person assessed shall then be served personally or by registered post with a Parcha showing the amount charged against him.

(5)

Any person so assessed may, within thirty days of the date on which he receives the Parcha or within such further period as may be allowed by the Divisional Lift Irrigation Officer, file an objection to the assessment.

(6)

The Lift Irrigation Deputy Collector or Revenue Officer shall after the expiry of the period for filing objections and after a

decision has been given on any such objection proceed to recover the sums assessed the payment of which shall then be immediately due.

18.

Penal rate under Rule 16 shall not be assessed if the unauthorised use or waste of water has occurred through the act or neglect of a Lift Irrigation Officer or any person employed on Lift Irrigation Officer or any person employed on Lift Irrigation work.

Demand and Collection

19.

The statements of the amount chargeable for water-rate shall be prepared under the supervision of, and shall be signed by the Lift Irrigation Deputy Collector or Revenue Officer or the Divisional Lift Irrigation Officer and shall be in such form as the State Government or Corporation may direct.

20.

(1)

The demand statement for water-rates due shall be prepared on the basis of the Jamabandi Register. Water-rates due to each beneficiary shall be prepared on the basis of entry in the Jamabandi Register, Parcha shall be served upon each beneficiary through the Lambardar of such other agency as may be decided by Divisional Lift Irrigation officer within a fortnight after the irrigation:

Provided that in case of assured irrigable command "area" it shall not be necessary to serve any Parcha.

(2)

No notice of demand other than the Parcha referred to in sub-rule (1) shall be issued during the currency of the lease. The facts of the Parcha having been issued shall be notified on the notice board of the office of the Lift Irrigation Ziladar.

21.

The Lambardar or any other agency shall returns to the Lift Irrigation Ziladar or authorised officer all Parchas which he has not distributed within fourteen days after he receives them and the Lift Irrigation Ziladar or authorised officer shall publish at his office a list at such Parchas with a notice that any rate-payer may receive his Parchas at his office.

22.

The Divisional Lift Irrigation Officer shall forward the demand statements (Khatiani) to the Lift Irrigation Deputy Collector or Revenue Officer in respect of assured irrigable command area within the season and for others as soon after the season as possible but not later than the dates specified below :-

Season - Last date of submission by the Divisional Lift Irrigation Officer to the Lift Irrigation Deputy Collector or Revenue Office -

1. Rabi - 20th April.

2. Hot weather - 20th July.

3. Kharif - 30th November.

23.

If any land held on the bhaoli tenure or share cropping is supplied with water, the entire water-rates assessed shall be payable by the occupiers of such land and the demand statement shall be prepared by the Divisional Lift Irrigation Officer or the Lift Irrigation Deputy Collector or Revenue Officer in the name of such occupiers:

Provided that on receipt of an application in Form no. 10 from the owner of such lands, the Divisional Lift Irrigation Officer or the Lift Irrigation Deputy Collector or Revenue Officer may direct that the water-rates shall be recovered from the occupiers and from the owner of such land in the same proportion as the produce is divisible among them, and shall alter the demand statement accordingly.

24.

If any land held on bhaoli tenure or share cropping is liable to assessment, the owners or occupiers of such land shall be assessed in the proportion in which the produce is divisible among them.

25.

(1)

Any person may present an objection to any demand for water rates made on him.

(2)

Every such objection shall -

(a)

Be delivered personally or through the Lambardar or sent by registered post either to the Sub-divisional Lift Irrigation Officer or to the Divisional Lift Irrigation Officer or to the Lift Irrigation Deputy Collector or Revenue Officer.

(b)

Be accompanied by a payment of fifty paisa in revenue stamps.

(c)

Be presented or sent by post so as to reach the officer specified in clause (2) within thirty days of the date on which the Parcha was received by the Lambardar, or in case of service of Parcha through any other agency within thirty days of the receipt of Parcha, provided that the Divisional Lift Irrigation Officer or the Lift Irrigation Deputy Collector or Revenue Officer may extend this period if he is satisfied that there are reasonable grounds for doing so.

(d)

Be in such form as the State Government or Corporation may determine and copies of such objection shall free of cost at all Lift Irrigation Offices and shall state clearly the name or the name of the persons objecting the village and the Lift Irrigation work concerned the crop and the year for which the charge is made and the demand to which objection is taken.

26.

On receipt of an objection, the authorised Lift Irrigation Officer shall, after such enquiry as he thinks fit, pass orders thereon and shall deliver or send by post a copy of such order to the person making the objection.

27.

(1)

An appeal shall lie from any order passed by Lift Irrigation Officer under Section 33 to the Collector of the district.

(2)

Every such appeal shall be accompanied by a copy of the order appealed against.

(3)

The Collector of the district shall, after such enquiry as he thinks fit, pass orders on such appeal and may, by an order in writing direct that the collection of the water-rate shall be suspended until appeal is decided.

28.

(1)

When an appeal has been filed against an order of the Sub-divisional Lift Irrigation Officer, the proceedings shall be sent through the Divisional Lift Irrigation Officer or the Lift Irrigation Deputy Collector or Revenue Officer who shall forward them to the Collector with his opinion without delaying it for the purpose of making further enquiry.

(2)

The Collector may on his own motion or on the suggestion of the Divisional Lift Irrigation Deputy Collector or Revenue Officer make or cause to be made such further enquiry as he thinks fit.

29.

(1)

Collection of all water-rates shall be made by the Lift Irrigation Deputy Collector or Revenue Officer in accordance with the statement of demands furnished to him by the Divisional Lift Irrigation Officer except in the case of lands held on the bhaoli tenure regarding which the provisions contained in Rules 23 and 24 apply.

(2)

Advance payment of water-rate may also be admissible to procedure prescribed by Government/Corporation.

Remissions and Alterations of Demand

30.

(1)

Claims for remission of water-rates under Section 40(3)(b) shall be presented to the Sub-divisional Lift Irrigation Officer in Form 12 either personally or through the Lambardar or by registered post at least twenty days before the crop is cut and shall be admitted only on proof of actual loss caused by the failure or stoppage of supply of water from any Lift Irrigation work.

(2)

If such a loss is proved, the Divisional Lift Irrigation Officer shall, if he is satisfied that the loss -

(a)

exceeds two-thirds of the value of the normal irrigated crop, remit the whole of the water-rate in respect of such area.

(b)
exceeds one-third and is less than two-thirds of such value remit one-half of the water-rates.

(3)
Save as provided in clause (2) no remission of water-rates under clause (b) of the sub-section (3) of Section 40 shall be granted.

31.
For the purpose of calculating the discharge from a Lift Irrigation work in order to verify claims for remission of water-rate on account of failure of supply of water the record of water gaugings on the V notch of the measuring tank shall be deemed to be conclusive.

32.
A remission statement signed by the Divisional Lift Irrigation Officer shall be sufficient authority for a refund of water-rates.

33.
The Lift Irrigation Deputy Collector or Revenue Officer may make any alteration in a demand statement received from the Divisional Lift Irrigation Officer:
Provided that the total sum shown to be due is not altered or that such alteration is necessary to correct only a clerical or arithmetical error.

34.
If any sum due on account of water-rates cannot be collected owing to the death, bankruptcy or disappearance of defaulter the amount due may be written off as irrecoverable by the Lift Irrigation Deputy Collector or Revenue Officer with the previous sanction of the Superintending Lift Irrigation Officer. A detailed list of all sums so written off shall be sent to the State Government or Corporation.

35.
Remission of water-rates on account of wide spread injury to crops caused by inundation blight, storms or any such extraordinary cause shall be granted only under the special orders of the State Government or Corporation.

36.
All applications for compensation under clause (c) of sub-section (3) of Section 40 shall be made not less than twenty days before the crop is cut.

37.
No person shall pass or cause any animal or vehicle to pass on or across Lift Irrigation work except on or across through facts or crossing as are provided for public use.

38.
An appeal shall lie to the Divisional Lift Irrigation Officer from any executive order passed by a Sub-divisional Lift Irrigation Officer and to the Superintending Lift Irrigation Officer from any original executive order passed by the Divisional, Lift Irrigation Officer.

39.
The State Government or Corporation may, at any time call for the record of any case which has come up before a Collector or a Superintending Lift Irrigation Officer and pass such orders thereon consistent with the provisions of the Act and the Rules framed thereunder as deemed proper.

40.
The Chief Engineer or any officer authorised by the State Government or Corporation shall exercise general control over the proceedings of all officers incharge of Irrigation and Revenue works of Lift Irrigation.

Form I

[See Rule 4(2)]

(Application for a Kharif Season lease.)

Mauza, Pargana, District, Tube-well no.

1. We, whose names are attached, apply under Section 20 of Act 16 of 1956, Bihar Lift Irrigation Act and the Rules framed under it by which we agree to be bound for water to be supplied from the above mentioned Tube-well from 25th June to 25th October for the irrigation of Kharif crop in the block formed by our holdings as specified below.

2. The approximate area to be irrigated by each applicant is stated in the Schedule following and each of us agree to pay the whole of the water-rate on the area in his or her occupation as found by actual measurement of the rate fixed by

the Government from time to time.

This sum will be payable, if there is requirement of water or not.

We agree as far as possible to prevent water supplied being wasted or used in an unauthorised manner.

The following are the boundaries of the block :-

North -

South -

East -

West -

Schedule

Name of applicant.

Name of Father

Name of crops.

No. of plots.

Area to be irrigated

Signature of applicant.

Remarks

1

2

3

4

5

6

7

N.B. - (a) Any smaller area than 1/20th acre will be charged as 1/20th acre.

(b)

Signature of cultivator 85% plots of block essentially required under Section 22.

I, hereby certify that the signatures or marks above are genuine, that the exception mentioned in the above Schedule, now the whole occupiers of the land included in the block that the boundaries of which are mentioned above correct and genuine percentage of signature of cultivators are mentioned in the above Schedule.

Signature of Lambardar

Report of Tube-well Operator

Tube-well no., Scheme

Report of Tube-well Overseer.

Signature of Tube-well Operator.

Tube-well no., Scheme

Signature of Tube-well Overseer.

Report of Tube-well Sub-divisional Officer.

Tube well no....., Scheme

Signature of Tube-well Sub-divisional Officer.

Form II

[See Rule 4(2)]

(Application for a Rabi Season Lease.)

Mauza, Pargana, District, Tube-well no

1. We, whose names are attached, apply under Section 20 of Act, 16 of 1956 Bihar Lift Irrigation Act and the Rules issued under it by which we agree to be bound for water to be supplied from the abovementioned Tube-well from the 26th October to 25th March for the irrigation of the areas mentioned below.

2. The approximate area to be irrigated by each applicant is stated in the Schedule following but each of us agree to pay on or before the 31st May of water-rates on the actual area in our occupation, as found by measurement, at the rate fixed by the State Government from time to time.

This sum will be payable, if there is requirement of water or not.

3. We agree, as far as possible, to prevent water supplied being wasted or used in an unauthorised manner.

Schedule 2

Name of applicant

Father's name.

Name of crops.

Number of plots.

Area to be irrigated A. D.

Signature of applicant.

Remarks.

1

2

3

4

5

6

7

N.B. - Any smaller area than 1/20th acre will be charged as 1/20th acre.

I, hereby certify that the signatures above are genuine, and that the area mentioned are correct.

Signature of Lambardar.

Report of Tube-well Operator.

Tube-well no., Scheme Area.

Signature of Tube-well Operator.

Report of Tube-well Overseer.

Village..... SchemeTube-well no.

Report of Tube-well Sub-divisional Officer.

Signature of Tube-well Overseer.

Tube-well no. Scheme Area.

Signature of Tube-well Sub-divisional Officer.

Form III

[See Rule 4(2)]

(Application for a hot weather season lease)

Mauza, Pargana District, Tube-wellno.

1. We, whose names are attached, apply under Section 20 of Act, 16 of 1956, Bihar Lift Irrigation Act and the Rules issued under it by which we agree to be bound for water to be supplied from the above named Tube-well from 26th March to 24th June for the irrigation of the areas mentioned below.

2. The approximate area to be irrigated by each applicant is stated in the Schedule following but each of us agree to pay on or before the 30th September of whole water-rates on the actual area in our occupation as found by measurement at the rate fixed by the State Government from time to time.

This sum will be payable, if there is requirement of water or not.

3. We agree, as far as is possible, to prevent water supplied being wasted or used in an unauthorised manner.

Schedule 3

Name of applicant

Father's name.

Name of crops.

Number of plots.

Area to be irrigated A. D.

Signature of applicant.

Remarks.

1

2

3

4

5
6
7

N.B. - Any smaller area than 1/20th acre will be charged as 1/20th acre.

I hereby certify that the signatures above are genuine, and that the areas mentioned are correct.

Signature of Lambardar.

Report of Tube-well Operator.

Tube-well no. Area Scheme

Signature of Tube-well Operator.

Report of Tube-well Overseer.

Tube-well no. Area Scheme

Signature of Tube-well Overseer.

Report of Tube-well Sub-divisional Officer.

Tube-well no. Area Scheme

Signature of Tube-well Sub-divisional Officer.

Form IV

[See Rule 4(2)]

(Application for supply of water for the different purpose of irrigation)

Mauza, Pargana....., District, Tube-well no.

1. I/We, whose names are attached, apply under Section 20 of Act, 16 of 1956 Bihar Lift Irrigation Act and the Rules issued under it by which we agree to be bound water to be supplied from the above named Tube-well for the different purpose of the areas mentioned below.

2. All applicants are ready to pay the water rates in cash @ Rs.....per gallon of gallon according to his necessity of water.

3. We agree, as far as is possible, to prevent water supplied being wasted or used in an unauthorised manner.

Schedule 4

Name of applicant

No. of plots in which water to be taken.

Necessity of water in gallon.

Purpose for which water is essential.

Signature of applicant.

Remarks.

1
2
3
4
5
6

Report of Tube-well Operator.

Village, Scheme no., Tube-well no.

Signature of Tube-well Operator

Report of Tube-well Overseer.

Village, Scheme no., Tube-well no.

Signature of Tube-well Overseer.

Report of Tube-well Sub-divisional Officer.

Village, Scheme no., Tube-well no.

Signature of Tube-well Sub-divisional Officer.

Form V

[See Rule 4(2)]

(Application for a single watering during the Kharif, Rabi and hot weather season.)

Mauza, Pargana, District, Tube-well no.

I/We, whose names are attached, apply under Section 20 of Act, 16 of 1956 Bihar Lift Irrigation Act and the Rules issued under it by which we agree to be bound for water to be supplied from the above named Tube-well for a single watering of the areas mentioned below from 25th October, 26th October to 25th March and 26th March to 24th June.

2. The approximate area to be irrigated by each applicant is stated in the Schedule below, but each of us agree to pay on presentation of demand water-rates for the watering received on the actual area in our occupation, as formed by measurement at the rate fixed by the Government from time to time.

This will be payable, if there is requirement of water or not.

3. We agree, as far as is possible, to prevent water supplied being wasted or used in an unauthorised manner.

Schedule 5

Name of applicant

Father's name.

Name of crops.

Number of plots.

Area to be irrigated A. D.

Signature of applicant.

Remarks.

1

2

3

4

5

6

7

N.B. - Any smaller area than 1/20th acre will be charged as 1/20th acre.

I, hereby certify that the signatures or marks above are genuine, and that the areas mentioned are correct.

Signature of Lambardar.

Report of Tube-well Operator.

Village, Tube-well no., Scheme

Signature of Tube-well Operator.

Report of Tube-well Overseer.

Village, Tube-well no., Scheme

Signature of Tube-well Overseer.

Report of Tube-well Sub-divisional Officer.

Signature of Tube-well Sub-divisional officer.

Form VI

[See Rule 5]

(Permit for Kharif season lease.)

Permit number -

Number of application and date -

Name of village -

Name of pargana -

Name of district -

Area to be irrigate. -

Number of tube-well -

Name of scheme -

Period for irrigation -

Water-rates due -

Date of payment -

Name of Lambardar -

Water-rate per acre -

This permit is issued under Section 21 of Act, 16 of 1956 Bihar Lift Irrigation Act for the irrigation of the areas mentioned

above. It is subject to the provision of all Rules passed under the Act. It is expressly agreed that water is supplied for the sole purpose of irrigating the land mentioned in the application. Water-rates will be charged on the areas in the occupation of each applicant within the block as ascertained by actual measurement and will be charged whether water is or is not required.

Sub-divisional Lift Irrigation Officer.

Form VII

[See Rule 5]

(Permit for Rabi season lease or hot weather season lease.)

Number of application and date -

Name of village -

Name of pargana -

Name of district -

Area to be irrigated -

Number of tube-well -

Name of scheme -

Period for irrigating -

Water-rates due -

Date of payment -

Name of Lambardar -

Water-rate per acre -

This permit is issued under Section 21 of Act, 16 of 1956 Bihar Lift Irrigation Act for the irrigation of the areas mentioned above. It is subject to the provision of all Rules passed under the Act. It is expressly agreed that water is supplied for the sole purpose of irrigating the land mentioned in the application. The area actually irrigated will be measured and charged, and applicants undertake, as far as is in their power, to prevent water being wasted or applied to the irrigation of land not included in the application, any claim for remission of water-rates must be made 20 days before the crop is cut.

Sub-divisional Lift Irrigation Officer.

Form VIII

[See Rule 5]

(Permit for supply of water for different irrigation purposes.)

Number of application and date -

Name of village -

Name of pargana -

Name of district -

Number of T.W. -

Name of T.W. scheme -

Actual measurement of water to be supplied -

Period and date of water-supply -

This permit is issued under Section 21 and 23 of Act, 16 of 1956 Bihar Lift Irrigation Act. It is subject to the provision of all Rules passed under the Act. It is expressly agreed that for which purpose is water supplied should be used for the purpose.

Sub-divisional Lift Irrigation Officer

Form IX

[See Rule 5]

(Permit for single watering.)

Number of application and date -

Name of village -

Name of pargana -

Name of district -

Area actually irrigated -

Number of T.W. -

Name of T.W. scheme -

Water-rates due -

Date of payment -

Period of irrigation -

Name of Lambardar -

Water-rate per acre -

The permit is issued under Section 21 of Act, 16 of 1956 Bihar Lift Irrigation Act for the irrigation of the areas mentioned above. It is subject to the provision of all Rules passed under the Act. It is expressly agreed that water is supplied for the sole purpose of irrigating the land mentioned in the application. The area actually irrigated will be measured and charged and the applicants undertake, as far as in their power to prevent water being wasted or applied to the irrigation of land not included in the application.

Sub-divisional Lift Irrigation Officer.

Form X

[See Rule 23]

(Application from a Bhaoli land owner.)

To

The

Whereas certain cultivators of Mouza, Pargana, District, of which I am the proprietor, have under Section 20 of Act, 16 of 1956, applied to be supplied with water for the irrigation of lands with above village of an area of acres, the water-rates on which will amount to Rs. whereas the above lands are held on a Bhaoli tenure, and I desire to pay a portion of the water-rates. I, therefore, under Section 20 of Act, 16 of 1956, Bihar Lift Irrigation Act, join in the application for water and authorize you to collect from me Rs of the water-rates assessed.

Signature -

Residence -

Witness -

Form XI

39, Form no. G. 6.....

Number.....Date.....

Statement showing alteration from the approved original demand in respect of tube-well for the month of 19 for the Sub-division

Number of the altered Khatani.

Name of village and Pargana.

No. of receipt book and receipts.

Name of rent payers.

Actual assessment

Amount

Area.

Crops.

Rs.

Paisa

(1)

(2)

(3)

(4)

Altered Demand

Name of the rate payer/payers in whose favour alterations made.

Remarks.

Area

Amount.

| Rs.
Paisa
Form XII
L, Form no. D11.
Petition under Act XVI of 1956.
Date of receipt in sub-divisional Office -
To be taken down in English by the officer receiving petition.
Division Complaint no.Sub-division. Application| of 19 19
Name of petitioner.....
Resident of village..... Assessed in village.....
Pargana No. of Tube-well.....
Objection toApplication for
(Statement made by complainant or applicant)
Dated 19Enquiry Order.Forwarded toDate 19
Receiving Officer.For enquiry and
report.Sub-divisional Officer.
Form XIII
[See Rule 19]
Report regarding Demand and Collection for the month of
Name of T. W. Sub-divisional/T.W. Division Number of T. W.
Total Demand.
Collection.
Balance.
Arrear
Current
Total.
Arrear
Current
Total.
Arrear
Current
Total.
Remarks
1
2
3
4
5
6
7
8
9
10
Lift Irrigation Deputy Collector/Revenue Officer/Divisional Lift Irrigation Officer.
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